

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 10
Honorable Jeffrey B. El-Hajj
Blanca Than, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: August 18, 2026 TIME: 9:00 A.M. / 9:01 A.M.

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling.
(Cal. Rules of Court, rule 3.1308(a)(1); Local Rule 8.D.)

****Please specify the issue to be contested when calling the Court and counsel****

The courthouse is open: Department 10 is fully open for in-person hearings. The court **strongly prefers in-person** appearances for all contested law-and-motion matters. For all other hearings, parties may appear either in person or by video. Telephone-only appearances are no longer permitted for civil hearings unless the court grants an exception. (Civil Local Rule 5.A.)

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Remote appearances: Department 10 uses Unicorn Digital Courtroom (UDC) for remote hearings. **This system requires advance registration with a case number and hearing date.** Please visit this link if you need to appear remotely, and then scroll to the link for Department 10:
<https://santaclara.courts.ca.gov/online-services/remote-hearings>.

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9:00 A.M.

LINE #	CASE #	CASE TITLE	RULING
Line 1	23CV415724	Sandra Page Taylor v. Levi's Stadium et al.	Click LINE 1 or scroll down for ruling.
Line 2	23CV415724	Sandra Page Taylor v. Levi's Stadium et al.	Click LINE 1 or scroll down for ruling.

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Line 3	23CV417347	Jia Liang v. Kuan William Wu	Plaintiff Jia Liang's motion enter judgment. Notice is not proper (there is no proof of service), but defendant Kuan William Wu filed a timely opposition. The matter settled at a mandatory settlement conference. A stipulation re settlement attached to plaintiff's motion indicates defendant agreed to pay plaintiff \$45,000 in installments. Under the terms of the stipulated settlement, defense "Attorney Sara Linder will prepare and file the judgment." That never occurred. Plaintiff contends defendant is in breach of the settlement because instead of a \$2,000 payment to plaintiff, defendant paid plaintiff \$1,100 and paid the remaining \$900 to a mediator to pay for plaintiff's share of mediation fees. Plaintiff disputes that the mediator is owed those fees. The court finds no material breach of the settlement on this record. Any dispute about the mediation fees must be resolved outside of court between plaintiff and the mediator. The court grants plaintiff's motion to the extent it merely seeks to enter judgment. Because defense counsel never lodged a proposed judgment, plaintiff is ordered to lodge a proposed judgment for the court's review. That judgment must restate the terms of the stipulation re settlement, without adding any other information. The matter is set for a hearing on dismissal after settlement on January 21, 2027, at 10:00 a.m. in Department 10. The proposed judgment must be lodged for the court's review before the next hearing. The court will prepare the order.
Line 4	24CV441910	Lauren Lockwood v. Strivr Labs, Inc.	Click LINE 4 or scroll down for ruling.

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Line 5	24CV451118	So Yeon Chun v. Hyeon Eui Lee	Cross-complainant Hyeon Eui Lee's motion to deem admitted requests for admission, set one, against self-represented cross-defendant Dong Suk Yoo. (Code Civ. Proc., § 2033.280.) Notice is not proper. The proof of service was served by electronic service. But Dong Suk Yoo did not expressly consent to receive electronic service. (Code Civ. Proc., § 1010.6, subd. (c) [service on unrepresented persons].) Though it does not appear the moving papers were sent by U.S. Mail, the court also observes that cross-complainant appears to have the wrong physical address for Dong Suk Yoo. The proof of service indicates a mailing address of 34560 El Camino Real, but the party's address of record is 3450 El Camino Real. The motion is DENIED. The court will prepare the order.
Line 6	25CV474284	Richard Ortiz v. General Motors, LLC	Click LINE 6 or scroll down for ruling.
Line 7	25CV474284	Richard Ortiz v. General Motors, LLC	Click LINE 6 or scroll down for ruling.
Line 8	26CV497313	EV Core Corp. dba Club Pilates Evergreen Valley, a California corporation v. JM Home Builders, Inc., a California corporation	Click LINE 8 or scroll down for ruling.

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Calendar Lines 1 and 2

Case Name: Sandra Taylor v. Levi's Stadium et al.

Case No.: 23CV415724

This is an action for negligence and premises liability brought by plaintiff Sandra Taylor (Plaintiff). The original and still operative complaint was filed in April 2023. It alleges two causes of action: (1) general negligence and (2) premises liability against defendants Levi's Stadium, San Francisco Forty-Niners (Forty Niners), Landmark Event Staffing Services, Inc. (Landmark), and Doe defendants.

The complaint makes little distinction between the defendants other than to allege that Landmark is an employee of the other named defendants. The first cause of action for general negligence alleges:

Plaintiff was a paying customer at a public event held at Levi's Stadium on May 15, 2022 put on by defendant, San Francisco Forty Niners. Plaintiff was urged by employees of defendant, Landmark Event Staffing Services, Inc., to try the large slide that had been placed on the premises. Plaintiff went on the slide which was so negligently designed and maintained, that Plaintiff suffered a fracture of her right foot and other personal injuries, as well as other damages as a result of her using the slide in the manner directed by Defendants.

(Complaint, GN-1.) The complaint does not identify any negligently designed feature of the slide or any specific maintenance issue with the slide.

The second cause of action for premises liability alleges:

Plaintiff was a paying customer at a public event held at Levi's Stadium on May 15, 2022 put on by defendant, San Francisco Forty Niners. Plaintiff was urged by employees of defendant, Landmark Event Staffing Services, Inc., to try the large slide that had been placed on the premises.

(Complaint, Prem.L-1.) The premises liability cause of action has boxes checked for negligence (count 1) and willful failure to warn (count 2). The first count is alleged against only Levi's Stadium, the San Francisco Forty Niners, and Does 1-5. The second count is alleged against "All Defendants" and Does 6-10. (Complaint, Prem.L-2 and Prem.L-3.)

Landmark answered the complaint in August 2023. Plaintiff attempted to file a first amended complaint (FAC) in September 2023 and October 2023. Both filings were rejected by the clerk's office because Landmark had already filed an answer and Plaintiff had not obtained leave of court to file a FAC. (Code Civ. Proc., § 472, subd. (a) ["A party may amend its pleading once without leave of court at any time before the answer, demurrer, or motion to strike is filed."].) That has led to some confusion. Defendant Forty Niners Stadium Management Company LLC (Forty Niners) filed an answer to the nonexistent FAC in October 2023. It is unclear whether Plaintiff knows that no FAC was ever accepted for filing.

At issue are two motions for summary judgment. The first, by Landmark and directed at the operative original complaint, was filed in July 2025. It was originally set for hearing in March 2026. It was later continued by the court to the current date. The second, by defendant

Forty Niners, was filed in May 2026 and is directed at the unfiled FAC. That motion was advanced by the court to the current hearing date. Plaintiff opposes both motions.

GENERAL STANDARDS FOR SUMMARY JUDGMENT

The pleadings limit the issues presented for summary judgment or summary adjudication. Such a motion may not be granted or denied based on issues not raised by the pleadings. (*Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1258 (*Laabs*); *Nieto v. Blue Shield of Calif. Life & Health Ins.* (2010) 181 Cal.App.4th 60, 73 (*Nieto*).) The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*).) A motion for summary judgment or adjudication shall be granted only if it completely disposes of an entire cause of action, an affirmative defense, a claim for damages, or an “issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1); *McCaskey v. California State Auto. Ass’n* (2010) 189 Cal.App.4th 947, 975; *Palm Spring Villas II Homeowners Association, Inc. v. Parth* (2016) 248 Cal.App.4th 268, 288.)

“A defendant seeking summary judgment must show that at least one element of the plaintiff’s cause of action cannot be established, or that there is a complete defense to the cause of action.” “The burden then shifts to the plaintiff to show there is a triable issue of material fact on that issue.” (*Alex R. Thomas & Co. v. Mutual Service Casualty Ins. Co.* (2002) 98 Cal.App.4th 66, 72; internal citations omitted.) “There is a triable issue of material fact if, and only if, the evidence would allow a reasonable finder of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Aguilar, supra*, 25 Cal.4th at p. 850.) While the same standards of admissibility govern both sides’ supporting evidence, the opposition evidence is liberally construed while the moving party’s evidence is strictly construed. (*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 768.) The evidence must be liberally construed in support of the opposing party, resolving any doubts in favor of that party. (*Yanowitz v. L’Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1037 (*Yanowitz*).)

A reply “shall not include any new evidentiary matter, additional material facts, or separate statement submitted with the reply and not presented in the moving papers or opposing papers.” (Code Civ. Proc., § 437c, subd. (b)(4); *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-38; *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252.) The court has not considered the reply separate statement filed by Landmark.

LANDMARK’S MOTION FOR SUMMARY JUDGMENT

Landmark moves for summary judgment and in the alternative for summary adjudication of four “issues,” none of which describe an issue of duty. (See Notice of Motion at p. 2:15-27.) The court construes the motion as seeking summary adjudication of each cause of action. Landmark’s motion is directed at the operative original complaint. (See memorandum at pp. 1:5-8, 4:15.)

First Cause of Action—General Negligence

“An action in negligence requires a showing that the defendant owed the plaintiff a legal duty, that the defendant breached the duty, and that the breach was a proximate or legal

cause of injuries suffered by the plaintiff.” (*Ann M. v. Pacific Plaza Shopping Center* (1993) 6 Cal.4th 666, 673.) “The issue of whether a legal duty exists is an issue of law, not an issue of fact for the jury.” (*Kentucky Fried Chicken of California, Inc. v. Superior Court* (1997) 14 Cal.4th 814, 819.)

Landmark argues that the first cause of action fails as alleged against it because Plaintiff cannot establish that any breach of a duty it owed proximately caused Plaintiff’s injuries, and because the assumption of the risk doctrine provides a complete defense. Landmark’s answer to the complaint raised assumption of the risk as an affirmative defense.

The primary assumption of the risk doctrine bars a plaintiff’s recovery for negligence when “it can be established that, because of the nature of the activity involved and the parties’ relationship to the activity, the defendant owed the plaintiff no duty of care.” (*Neighbarger v. Irwin Industries, Inc.* (1994) 8 Cal.4th 532, 538; see also *Avila v. Citrus Community College Dist.* (2006) 38 Cal.4th 148, 161 (*Avila*) “[p]rimary assumption of the risk arises when, as a matter of law and policy, a defendant owes no duty to protect a plaintiff from particular harms”). “Primary assumption of risk is a complete bar to recovery.” (*Childs v. County of Santa Barbara* (2004) 115 Cal.App.4th 64, 69 (*Childs*), citation omitted.)

The doctrine of primary assumption of risk applies “where ‘conditions or conduct that otherwise might be viewed as dangerous often are an integral part of the sport [or activity] itself.’” (*Saville, supra*, 133 Cal.App.4th at p. 867.) In other words, under the primary assumption of risk doctrine, “participants in and operators of certain activities have no duty of ordinary care to protect other participants from risks inherent in the activity.” (*Nalwa v. Cedar Fair, L.P.* (2012) 55 Cal.4th 1148, 1152 & 1162 (*Nalwa*) [finding that primary assumption of the risk applies to the use of bumper cars at an amusement park].)

To determine whether the primary assumption of risk doctrine applies, a court must examine “the nature of the sport itself,” as well as “the defendant’s role in, or relationship to, the sport.” (*Knight v. Jewett* (1992) 3 Cal.4th 296, 317.) “[T]he primary assumption of risk doctrine is not limited to activities classified as sports, but applies as well to other recreational activities ‘involving an inherent risk of injury to voluntary participants . . . where the risk cannot be eliminated without altering the fundamental nature of the activity.’” (*Nalwa, supra*, 55 Cal.4th at p. 1156, citing *Beninati v. Black Rock City, LLC* (2009) 175 Cal.App.4th 650, 658.)

The risks inherent in a given recreational activity can be resolved on summary judgment. “Such a determination is a legal question within the province of the courts and is reached from common knowledge.” (*Griffin v. The Haunted Hotel, Inc.* (2015) 242 Cal.App.4th 490, 499 (*Griffin*) [finding that doctrine applied to a haunted trail attraction].) “Primary assumption of the risk is an objective test.” (*Saville v. Sierra College* (2005) 133 Cal.App.4th 857, 866.) “Under the primary assumption of risk doctrine, ‘a court need not ask what risks a particular plaintiff subjectively knew of and chose to encounter, but instead must evaluate the fundamental nature of the [recreational activity] and the defendant’s role in or relationship to that [activity] to determine whether the defendant owes a duty to protect a plaintiff from the particular risk of harm.’ ” (*Griffin, supra*, 242 Cal.App.4th at 499.) “Owners and operators ‘owe participants the duty not to unreasonably increase the risks of injury’ beyond those inherent in the activity.” (*Ibid.*)

“Generally, one owes a duty of ordinary care not to cause an unreasonable risk of harm to others.” (*Shin v. Ahn* (2007) 42 Cal.4th 482, 488 (*Shin*)). Under the primary assumption of risk doctrine, “the defendant owes no duty to protect a plaintiff from a particular risk that the plaintiff is construed to have assumed. In the sports context, the plaintiff is deemed to have assumed those risks inherent in the sport in which plaintiff chooses to participate.” (*Id.* at p. 498.) Where the doctrine of primary assumption of risk applies, the defendant owes the plaintiff “only the duty not to act so as to increase the risk of injury over that inherent in the activity.” (*Nalwa, supra*, at p. 1154.) This is a “limited duty of care . . . to refrain from intentionally injuring . . . another or engaging in conduct that is ‘so reckless as to be totally outside the range of the ordinary activity involved in the sport.’ ” (*Shin, supra*, 42 Cal.4th at pp. 489-490.) That is “‘a duty not to increase the risks inherent in the sport, not a duty to decrease the risks.’ ” (*Avila, supra*, 38 Cal.4th at p. 166.)

Landmark has met its initial burden to establish through admissible evidence that the assumption of the risk doctrine applies to the activity Plaintiff, an adult woman, was engaged in when she was injured: sliding down a playground slide. (Landmark undisputed material facts (UMFs) 10-19.) The complaint acknowledges that Plaintiff was engaged in an activity, recreational use of a playground slide, that the assumption of the risk doctrine may logically be applied to. (*Griffin, supra*, 242 Cal.App.4th at 501 [determination is a question of law based on general characteristics of activity that can be made by judge based on their own and common experience].) The fundamental nature of the activity is that a person ascends to the top of the slide and then slides down it, typically feet first, gaining momentum as they go, until reaching the bottom. Gaining momentum and speed as a person approaches the bottom of the slide and perhaps hitting the ground more forcefully than anticipated is a risk inherent in the activity.

Because the doctrine applies, the duty Landmark owed to Plaintiff regarding her use of the playground slide was to not increase the inherent risks of the activity; Landmark had no duty to decrease the inherent risks. Plaintiff’s deposition testimony and verified responses to requests for admission (exhibits 2 and 3 to Landmark’s compendium of evidence) confirm that while her and her companion’s interest in the slide may have been initially prompted by a comment from an alleged Landmark employee, she made her own decision to go down the slide and was not pressured to do so by any Landmark employee. Nor did any Landmark employee take any action toward Plaintiff or the slide that could reasonably be interpreted as increasing the risk inherent in the activity when Plaintiff went down the slide.

When the burden shifts to Plaintiff, she does not raise any triable issue as to the application of the assumption of the risk doctrine. The opposition’s argument that a statement from a Landmark employee that Plaintiff and her companions should try the slide increased the risks inherent in the activity is unpersuasive. And Landmark had no duty to decrease the risks of the activity.

Furthermore, the first cause of action alleges that what caused Plaintiff’s injury was the negligent design and maintenance of the slide. Plaintiff is bound by her verified responses to requests for admission where she admits that she was not forced to use the slide, that she did so of her own free will, and that Landmark did not design or maintain the slide. (See Landmark ex. 3, responses 1-5, 12.) Plaintiff’s declaration, the only evidence submitted with the opposition to Landmark’s motion, fails to raise any triable issue of material fact or of law. A declaration in opposition to motion for summary judgment cannot serve as an amendment or

expand the issues set forth in the pleading. (*Nativi v. Deutsche Bank National Trust Co.* (2014) 223 Cal.App.4th 261, 290.) Nor can it contradict deposition testimony or responses to written discovery. (*Whitmire v. Ingersoll-Rand Co.* (2010) 184 Cal.App.4th 1078, 1087; *Shin v. Ahn* (2007) 42 Cal.4th 482, 500, fn. 12.) And it is inadmissible to the extent that it discusses subsequent remedial measures. (Evid. Code, § 1151 [“When, after the occurrence of an event, remedial or precautionary measures are taken, which, if taken previously, would have tended to make the event less likely to occur, evidence of such subsequent measures is inadmissible to prove negligence or culpable conduct in connection with the event.”].)

Second Cause of Action—Premises Liability

“Broadly speaking, premises liability alleges a defendant property owner allowed a dangerous condition on its property or failed to take reasonable steps to secure its property against criminal acts by third parties.” (*Delgado v. American Multi-Cinema, Inc.* (1999) 72 Cal.App.4th 1403, 1406.) “Premises liability is a form of negligence ... and is described as follows: The owner of premises is under a duty to exercise ordinary care in the management of such premises in order to avoid exposing persons to an unreasonable risk of harm. A failure to fulfill this duty is negligence.” (*Brooks v. Eugene Burger Management Corp.* (1989) 215 Cal.App.3d 1611, 1619.)

There is also a separate notice requirement: “An owner is liable for harm caused by a dangerous condition, of which the owner had actual or constructive knowledge. An injured plaintiff has the burden of showing that the owner had notice of the defect in sufficient time to correct it, but failed to take reasonable steps to do so.” (*Howard v. Omni Hotels Management Corp.* (2012) 203 Cal.App.4th 403, 431, citations omitted.) “Although no two accidents happen in the same way, to be admissible for showing notice to a landowner of a dangerous condition, evidence of another similar accident must have occurred under substantially the same circumstances.” (*Id.* at p. 432.)

“An owner of real property is ‘not the insurer of [a] visitor’s personal safety . . .’ However, an owner is responsible ‘for an injury occasioned to another by [the owner’s] want of ordinary care or skill in the management of his or her property . . .’ Accordingly, landowners are required ‘to maintain land in their possession and control in a reasonably safe condition,’ and to use due care to eliminate dangerous conditions on their property.” (*Taylor v. Trimble* (2017) 13 Cal.App.5th 934, 943-944, internal citations and quotation marks omitted.) “The proper test to be applied to the liability of the possessor of land . . . is whether in the management of his property he has acted as a reasonable man in view of the probability of injury to others.” (*Alcaraz v. Vece* (1997) 14 Cal.4th 1149, 1156 (*Alcaraz*).)

Landmark argues that the second cause of action as alleged against it fails as a matter of law because Landmark did not own, lease, occupy, or control Levi’s Stadium. (See notice of motion at p. 2:13-14; 26-27.) Landmark does not assert assumption of risk as a defense to the second cause of action.

The second cause of action does not allege that any defendant had actual or constructive notice of any dangerous condition. That is an essential element of the claim that a plaintiff must plead and prove. (*Howard, supra*, 203 Cal.App.4th at 431.) In addition, only count two of the second cause of action is alleged against Landmark. The count is based on Civil Code section 846. (Complaint, Prem.L-3.) Civil Code section 846 generally provides

private property owners with immunity where persons who enter their property for recreational purposes are injured. There is an exception to the immunity “where permission to enter for [recreational purposes] was granted for a consideration.” (Civ. Code, § 846, subd. (d)(2).) The second cause of action does not clearly allege that this exception applies, even though all parties appear to assume that it does. Even when Civil Code section 846 applies, the statute “does not create a duty of care or ground of liability for injury to person or property.” (Civ. Code, § 846, subd. (e).) Because only count two of the second cause of action is alleged against Landmark, it is dependent upon the first cause of action, and assumption of the risk provides Landmark a complete defense to the first cause of action. For these reasons, the second cause of action arguably fails as a matter of law as alleged against Landmark.

Landmark’s argument is primarily based on Plaintiff’s verified responses to requests for admission, numbers 6-11, admitting both that Plaintiff has no facts to support any contention that Landmark owned or possessed Levi’s Stadium, and that on May 15, 2022, Landmark in fact did not own, possess, or control Levi’s Stadium. Landmark also relies on its contract with the Forty Niners. (See exhibits 3 and 4 to Landmark’s appendix of evidence.) The foregoing evidence is sufficient to meet Landmark’s initial burden as to the second cause of action.

When the burden shifts to Plaintiff, she does not raise any triable issues of material fact as to the second cause of action as alleged against Landmark. Plaintiff’s declaration, the only evidence submitted with the opposition to Landmark’s motion, cannot refute her verified discovery responses.

Landmark’s motion for summary judgment is therefore granted.

FORTY NINERS’ MOTION FOR SUMMARY JUDGMENT

As already discussed, the motion by the Forty Niners’ motion is not directed at the operative complaint, but rather at a FAC that was never accepted for filing. (See Forty Niners’ memorandum at p. 2:10-12 [“In her First Amended Complaint (the operative complaint), Plaintiff brings two cause of action against Defendant Forty Niners Stadium Management Company LLC: general negligence and premises liability.”]) The Forty Niners have submitted a copy of the FAC (it is not file-endorsed) as exhibit E to its packet of supporting evidence (an exhibit to the declaration of Maria Lampasona). And several of the undisputed material facts in its separate statement rely on this exhibit E for support. Forty Niners’ motion for summary judgment was filed on May 29, 2026, more than two years after the proposed FAC was rejected for filing in October 2023.

Because the Forty Niners’ motion for summary judgment is not directed at the operative pleading in this lawsuit, the motion must be denied for failure to meet the initial burden. The court does not reach the arguments made in the motion, Plaintiff’s opposition, or the Forty Niners’ objections to evidence.

CONCLUSION

Defendant Landmark’s motion for summary judgment is granted.

Defendant Forty Niners’ motion for summary judgment is denied for failure to meet the initial burden.

The court will prepare the order.

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Calendar Line 4

Case Name: Lauren Lockwood v. Strivr Labs, Inc.

Case No.: 24CV441910

This is a wrongful termination and employment discrimination action brought by plaintiff Lauren Lockwood (Plaintiff) against defendant Strivr Labs, Inc. (Defendant).

Plaintiff's first amended complaint (FAC) alleges 14 causes of action: (1) pregnancy discrimination in violation of the Fair Employment and Housing Act (FEHA); (2) gender discrimination in violation of FEHA; (3) interference in violation of the Pregnancy Disability Leave Law (PDL); (4) retaliation in violation of the PDL; (5) interference in violation of California Family Rights Act (CFRA); (6) retaliation in violation of CFRA; (7) sex and gender-based harassment; (8) failure to prevent harassment, discrimination, and/or retaliation in violation of FEHA; (9) wrongful termination in violation of public policy; (10) race discrimination in violation of FEHA; (11) unlawful retaliation in violation of Labor Code section 1102.5; (12) breach of contract; (13) breach of contract; and (14) promissory estoppel.

According to the FAC, Plaintiff accepted an employment offer with Defendant in May 2022 for the position of Director of People Operations. (FAC, ¶ 9.) Plaintiff and Defendant had an at-will employment relationship. (*Id.* at ¶ 140.) Plaintiff's employment benefits included up to 18 weeks of paid leave in the event of birth or adoption, and continued payments to her health insurance policy. (*Id.* at ¶¶ 134, 136.) To be eligible for paid leave, Plaintiff had to be the primary caregiver and had to have been employed by Defendant for at least six consecutive months. (*Id.* at ¶ 135.) Plaintiff fully complied with the conditions required under the agreement, including timely notifying Defendant of Plaintiff's intent to take parental leave. (*Id.* at ¶ 136.) The FAC does not attach the paid leave policy itself. The FAC cites a Bates-stamped document apparently produced by Defendant in discovery. (*Id.* at ¶ 135.)

Plaintiff went on maternity leave on April 29, 2024. (FAC, ¶ 138.) On May 3, 2024, Defendant's chief executive officer Derek Belch emailed Plaintiff on May 3, 2024, stating, "[y]ou are still an employee in good standing at Strivr and we look forward to your return from maternity leave on October 1, 2024." (*Id.* at ¶ 139.) Plaintiff then received a notice of immediate termination on May 31, 2024. (*Id.* at ¶ 20.) The FAC alleges Defendant deprived Plaintiff of four months of paid leave and health insurance coverage. (*Id.* at ¶ 142.) The FAC further alleges that Plaintiff was deprived of a "reasonable employment duration of at least 3 months starting from October 1, 2024, as she was not expecting to return to work only to get fired immediately upon return." (*Ibid.*)

At issue is Defendant's demurrer to the 12th, 13th, and 14th causes of action. Plaintiff opposes.

LEGAL STANDARDS FOR DEMURRERS

In ruling on a demurrer, the court accepts as true all properly pleaded material factual allegations but does not accept as true contentions, deductions or conclusions of fact or law.

(*Valero v. Spread Your Wings, LLC* (2023) 88 Cal.App.5th 243, 253 (*Valero*)). Code of Civil Procedure section 430.60 states that “[a] demurrer shall distinctly specify the grounds upon which any of the objections to the complaint, cross-complaint, or answer are taken. Unless it does so, it may be disregarded.” The California Rules of Court also require that the demurrer itself (distinct from a supporting memorandum) specify the target of any objection and the grounds. (Cal. Rules of Court, rules 3.1103(c), 3.1112(a), 3.1320(a) [“Each ground of demurrer must be in a separate paragraph and must state whether it applies to the entire complaint, cross-complaint, or answer, or to specified causes of action or defenses.”])

The court cannot consider extrinsic evidence when ruling on a demurrer. This includes declarations. The court has considered the declaration from defense counsel filed in support of the demurrer only to the extent it discusses the meet and confer efforts required by statute.

DISCUSSION

Defendant challenges the 12th cause of action for breach of contract, 13th cause of action for breach of contract, and 14th cause of action for promissory estoppel on the grounds that each cause of action fails to allege sufficient facts and is uncertain. (Notice of Demurrer and Demurrer, pp. 1-2, citing Code Civ. Proc., § 430.10, subds. (e)-(f).) Defendant also demurs to the 13th cause of action on the ground that the FAC fails to allege whether the contract is written, oral, or implied by conduct. (Notice of Demurrer and Demurrer, p. 2:2-5, citing Code Civ. Proc., § 430.10, subd. (g).)

Twelfth Cause of Action – Breach of Contract

Defendant contends the 12th cause of action fails to state sufficient facts because (1) the FAC expressly alleges an at-will relationship that bars any promise for continued employment (Demurrer, p. 8:11-13); and (2) neither the leave policy nor the May 3, 2024, email create a contract for continued employment. (*Id.* at p. 10:13-15.) Defendant also demurs to the 12th cause of action on the ground of uncertainty, arguing the FAC does not attach the contract or plead its material terms.

“To establish a cause of action for breach of contract, the plaintiff must plead and prove (1) the existence of the contract, (2) the plaintiff’s performance or excuse for nonperformance, (3) the defendant’s breach, and (4) resulting damages to the plaintiff.” (*Maxwell v. Dolezal* (2014) 231 Cal.App.4th 93, 97-98.) “In an action based on a written contract, a plaintiff may plead the legal effect of the contract rather than its precise language.” (*Construction Protective Services, Inc. v. TIG Specialty Ins. Co.* (2002) 29 Cal.4th 189, 199 (*Construction Protective Services*)).

An employment relationship is fundamentally contractual, and Labor Code section 2922 establishes the presumption that an employer may terminate its employees at will. (*Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 350 (*Guz*)). That said, an employer’s official policies and practices may also give rise to implied employment contract terms such as promises for non-monetary employment benefits. (*Id.* at p. 344.)

The 12th cause of action alleges, “As part of Plaintiff’s employment benefits, there was a specific promise to provide Plaintiff with up to 18 weeks of paid leave in the event of birth or adoption.” (FAC, ¶ 123.) To be entitled to the leave, the employee had to be the primary

caregiver, and had to have been employed for at least six months. (FAC, ¶ 124.) It alleges “Plaintiff was also entitled to continue to receive payments from Defendant towards her health insurance policy.” (FAC, ¶ 125.) And it alleges Defendant breached “the agreement” by terminating Plaintiff while she was on parental leave. (FAC, ¶ 129.)

The court understands the 12th cause of action as alleging a breach of Defendant’s parental leave policy. As currently alleged, the 12th cause of action does not state sufficient facts to constitute a cause of action. The 12th cause of action alleges that Defendant’s parental leave policy allowed for up to 18 weeks of paid leave for employees who met the conditions described in the FAC. But the 12th cause of action does not allege that the full period of paid leave was guaranteed even to individuals who were terminated. Upon termination, Plaintiff was no longer an “employee” to which the policy applied. The 12th cause of action does not state sufficient facts to constitute a cause of action.

A plaintiff bears the burden of proving an amendment would cure any defect identified on demurrer. (*Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1081.) Plaintiff requests leave to amend to allege additional details on the policy’s operative terms. The court will grant leave to amend because this is the first pleading challenge and there is a reasonable possibility of amendment. (*City of Stockton v. Super. Ct.* (2007) 42 Cal.4th 730, 747.)

The demurrer to the 12th cause of action for failure to state sufficient facts is sustained with leave to amend. The court does not reach Defendant’s alternate grounds for demurrer to this cause of action.

Thirteenth Cause of Action – Breach of Contract

Defendant demurs to the 13th cause of action on the grounds that it: (1) fails to allege sufficient facts; (2) fails to allege the nature of the contract; and (3) is uncertain.

The 13th cause of action also alleges breach of an agreement. It repeats the allegations from the 12th cause of action about the parental leave policy. It also adds alleges that Plaintiff was assured by the May 3, 2024, email from Derek Belch informing her that she was “still an employee in good standing at Striver and we look forward to your return from maternity leave on October 1, 2024.” (FAC, ¶ 139.)

Plaintiff confirms in her opposition that the 13th cause of action alleges “the same enforceable [promise for] paid-leave benefit” as the 12th cause of action. (Opposition, p. 7:18-19.) It likewise fails to state sufficient facts.

The demurrer to the 13th cause of action based on the failure to state sufficient facts is sustained with leave to amend. The court does not reach Defendant’s alternate grounds for demurrer to this cause of action.

Fourteenth Cause of Action – Promissory Estoppel

Defendant contends that the 14th cause of action does not allege a clear and unambiguous promise, reasonable reliance, or detrimental reliance. Defendant also contends that the 14th cause of action is uncertain.

The elements of promissory estoppel are: (1) a promise clear and unambiguous in its terms; (2) reliance by the party to whom the promise is made; (3) reliance that is both reasonable and foreseeable; and (4) harm to the party asserting the estoppel from such reliance. (*Aceves v. U.S. Bank N.A.* (2011) 192 Cal.App.4th 218, 225 (*Aceves*)). An enforceable promise must be definite enough for a court to determine the scope of the duty, and the limits of performance must be sufficiently defined to provide a rational basis to assess damages. (*Id.* at p. 226, citing *Garcia v. World Savings, FSB* (2010) 183 Cal.App.4th 1031, 1044.)

The 14th cause of action alleges that on May 3, 2024, Belch called Plaintiff and sent an email stating, “[y]ou are still an employee in good standing at Strivr and we look forward to your return from maternity leave on October 1, 2024.” (FAC, ¶ 139.) Plaintiff alleges that email created a clear and unambiguous expectation of continued employment through that date. (*Id.* at ¶ 146.)

Belch’s email describes an expectation of a return date, rather than a binding promise that termination could not occur beforehand. (Demurrer, p. 17:11-13.) The email does not supply the court with facts to determine the scope of duty or any limits on performance. (*Aceves, supra*, 192 Cal.App.4th at p. 226.) And the allegation that the email “created a clear and unambiguous expectation of continued employment through that date,” without more, is a legal conclusion that the court does not accept as true for purposes of demurrer. (*Valero, supra*, 88 Cal.App.5th at p. 253.)

The demurrer to the 14th cause of action for failure to state sufficient facts is sustained with leave to amend. The court does not reach Defendant’s alternate grounds for demurrer to this cause of action.

CONCLUSION

Defendant’s demurrer to the 12th through 14th causes of action for failure to state sufficient facts is sustained with leave to amend. The court does not grant leave to add any new parties or causes of action. (*Zakk v. Diesel* (2019) 33 Cal.App.5th 431, 456.)

Any amended pleading must be filed and served no later than September 18, 2026.

The court will prepare the order.

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Calendar Line 6**Case Name:** Richard Ortiz v. General Motors, LLC**Case No.:** 25CV474284

This is an action brought under the Song-Beverly Consumer Warranty Act by plaintiff Richard Ortiz (Ortiz) against defendant General Motors, LLC (GM), and Doe defendants. It is based on Ortiz's purchase of a 2019 Chevrolet Silverado 1500 (Subject Vehicle) in November 2019. As part of this purchase, Ortiz entered into a warranty contract with GM.

The original and still operative complaint was filed in September 2025, more than four years after Ortiz acquired the Subject Vehicle. The complaint alleges five causes of action against GM: (1) violation of Civil Code section 1793.2, subdivision (d); (2) violation of Civil Code section 1793.2, subdivision (b); (3) violation of Civil Code section 1793.2, subdivision (a)(3); (4) breach of the implied warranty of merchantability; and (5) fraudulent inducement—concealment. Attached to the complaint as exhibit A is a copy of the warranty contract.

At issue is GM's demurrer to and motion to strike portions of the complaint, opposed by Ortiz.

LEGAL STANDARDS FOR DEMURRER

In ruling on a demurrer, the court accepts as true all properly pleaded material factual allegations but does not accept as true contentions, deductions or conclusions of fact or law. (*Valero v. Spread Your Wings, LLC* (2023) 88 Cal.App.5th 243, 253.) Code of Civil Procedure section 430.60 states that "[a] demurrer shall distinctly specify the grounds upon which any of the objections to the complaint, cross-complaint, or answer are taken. Unless it does so, it may be disregarded." The California Rules of Court also require that the demurrer itself (distinct from a supporting memorandum) specify the target of any objection and the grounds. (See Cal. Rules of Court, rules 3.1103(c), 3.1112(a), 3.1320(a) ["Each ground of demurrer must be in a separate paragraph and must state whether it applies to the entire complaint, cross-complaint, or answer, or to specified causes of action or defenses."].)

The court cannot consider extrinsic evidence when ruling on a demurrer. That includes declarations. The court has considered the declaration from defense counsel only to the extent it describes the meet and confer efforts required by statute. Finally, "points raised in the reply brief for the first time will not be considered, unless good reason is shown for failure to present them before." (*Proctor v. Vishay Intertechnology, Inc.* (2013) 213 Cal.App.4th 1258, 1273.)

DISCUSSION OF DEMURRER

GM demurs to the complaint's fourth cause of action solely on the basis that it is barred by the statute of limitations, and demurs to the fifth cause of action on the ground that it is barred by the statute of limitations and also on the ground that it fails to state sufficient facts.

Statute of Limitations Argument

"A complaint showing on its face the cause of action is barred by the statute of limitations is subject to general demurrer." (*Iverson, Yoakum, Papiano & Hatch v. Berwald* (1999) 76 Cal.App.4th 990, 995.) The running of the statute must appear clearly and

affirmatively from the dates alleged—it is not enough that the complaint might be barred. (*Committee for Green Foothills v. Santa Clara County Board of Supervisors* (2010) 48 Cal.4th 32, 42.) “Generally, the limitations period starts running when the last element of a cause of action is complete.” (*NBCUniversal Media, LLC v. Super. Ct.* (2014) 225 Cal.App.4th 1222, 1231.)

Fourth Cause of Action

While not labeled as A Song-Beverly claim, the fourth cause of action for breach of the implied warranty of merchantability is expressly based on Civil Code sections 1791.1, 1794 and 1794.5. (See complaint at ¶¶ 40-44.)

“Under the implied merchantability warranty, ‘every sale of consumer goods that are sold at retail in this state shall be accompanied by the manufacturer’s and the retail seller’s implied warranty that the goods are merchantable.’” (*Brand v. Hyundai Motor America* (2014) 226 Cal.App.4th 1538, 1545, quoting Civ. Code, § 1792.) “The warranty “‘arises by operation of law’” and therefore applies despite its omission from a purchase contract.” (*Id.*) “‘Merchantability, as pertinent here, means that the goods ‘[p]ass without objection in the trade under the contract description,’ and are ‘fit for the ordinary purposes for which such goods are used.’” (*Ibid.*, quoting Civ. Code, § 1791.1, subd. (a).) Plaintiff must allege a breach of warranty, occurring while the warranty is valid, and must sue within the limitations period. (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1306 (*Mexia*).) The “implied warranty of merchantability may be breached by a latent defect undiscoverable at the time of sale.” (*Id.* at p. 1304.) Thus, if a product is sold with a latent defect, the implied warranty is breached “by the existence of the unseen defect, not by its subsequent discovery.” (*Id.* at p. 1305.) Because an implied warranty is one that arises by operation of law rather than by an express agreement of the parties, courts have consistently held it is not a warranty that explicitly extends to future performance of the good. (*Cardinal Health 301, Inc. v. Tyco Electronics Corp.* (2008) 169 Cal.App.4th 116, 134.)

The limitations period applicable to the fourth cause of action is four years under Commercial Code section 2725, subdivision (1). The claim accrues “when the breach occurs, regardless of the aggrieved party’s lack of knowledge of the breach.” (Com. Code, § 2725, subd. (2).) The duration provision in the Song-Beverly Act provides that the duration “shall be coextensive in duration with an express warranty which accompanies the consumer goods... in no event shall such implied warranty have a duration of less than 60 days nor more than one year following the sale.” (*Mexia, supra*, 174 Cal.App.4th at 1304, citing Civ. Code, § 1791.1, subd. (c).)

The complaint alleges that Ortiz acquired the Subject Vehicle in November 2019. The complaint was filed more than four years later. The fourth cause of action is time-barred on its face.

The complaint’s tolling and delayed discovery allegations in the complaint are so generic and conclusory that they are legal and factual conclusions that cannot be accepted as true on demurrer. (Complaint at ¶¶ 23-24; *Valero, supra*, 88 Cal.App.5th at p. 253.) When a plaintiff relies on a theory of fraudulent concealment, delayed accrual, equitable tolling, or estoppel to save a cause of action that otherwise appears on its face to be time-barred, he or she must specifically plead facts which, if proved, would support the theory. (*Mills v. Forestex Co.*

(2003) 108 Cal App 4th 625, 641 (*Mills*).) “In order to rely on the discovery rule for delayed accrual of a cause of action, ‘[a] plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence.’ In assessing the sufficiency of the allegations of delayed discovery, the court places the burden on the plaintiff to ‘show diligence’; ‘conclusory allegations will not withstand demurrer.’” (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 808 (*Fox*), internal citations omitted.) To be entitled to the benefit of the delayed discovery rule, a plaintiff must specifically plead the time and manner of discovery and show the following: (1) the plaintiff had an excuse for late discovery; (2) the plaintiff was not at fault in discovering facts late; (3) the plaintiff did not have actual or presumptive knowledge to be put on inquiry; and (4) the plaintiff was unable to make earlier discovery despite reasonable diligence. (*E-Fab, Inc. v. Accountants, Inc. Services* (2007) 153 Cal.App.4th 1308, 1319, 1324-1325.)

Plaintiff argues *Mexia* allows for delayed discovery of a breach of implied warranty claim. In *Mexia*, the action was filed within four years of the date of purchase of the item (a boat) that contained the latent defect. *Mexia* did not articulate or purport to apply a delayed discovery rule, because resort to such a rule was unnecessary in that case. *Mexia* determined that latent defects that exist in the first year after tender of delivery, even if they do not manifest until after the first year, can be a basis for a breach of implied warranty claim, so long as the claim is filed within four years of the date of sale. (*Mexia, supra*, 174 Cal.App.4th at pp. 1306-1307.) It cannot be read as finding that a breach of implied warranty claim accrues upon discovery of the alleged breach. Here, Ortiz’s complaint was not filed within four years after he acquired the subject vehicle.

A plaintiff bears the burden of demonstrating that an amendment would cure the defect identified on demurrer. (*Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1081.) Ortiz’s opposition does not meet this burden. But the court will grant leave to amend the fourth cause of action because this is the first pleading challenge to be heard in this case. The court does not grant leave to add new causes of action or parties.

Fifth Cause of Action

The statute of limitations applicable to the fifth cause of action for fraudulent inducement through concealment is the three-year statute set forth in Code of Civil Procedure section 338, subdivision (d). A claim for fraud accrues on the date of “discovery, by the aggrieved party, of the facts constituting the fraud.” (Code Civ. Proc. § 338, subd. (d); *Britton v. Girardi* (2015) 235 Cal.App.4th 721, 734.) The facts constituting the fraud here are the sale of the subject vehicle to Ortiz in November 2019 without disclosing a “transmission defect” allegedly known to GM. The complaint was filed more than four years later. “‘Although the statute does not expressly provide that the claim will accrue based upon either actual or inquiry notice of the claimant, California courts have long construed it in such a fashion.’ As our Supreme Court has long held, under Code of Civil Procedure section 338, subdivision (d), a ‘plaintiff must affirmatively excuse his [or her] failure to discover the fraud [or mistake] within three years after it took place, by establishing facts showing that he [or she] was not negligent in failing to make the discovery sooner and that he [or she] had no actual or presumptive knowledge of facts sufficient to put him [or her] on inquiry.’” (*Krolikowski v. San Diego City*

Employees' Retirement System (2018) 24 Cal.App.5th 537, 561-562, internal citations omitted.)

The complaint's conclusory allegations of tolling, and that Oritz did not discover the alleged fraud until August 2025, do not satisfy the standard for tolling or delayed discovery and do not affirmatively excuse the failure to discover the alleged fraud within three years of purchasing the subject vehicle. (Complaint at ¶¶ 23-24.) The court will grant leave to amend the fifth cause of action because this is the first pleading challenge in the case.

Failure to State Sufficient Facts

The elements of fraudulent concealment are: (1) the defendant concealed or suppressed a material fact; (2) the defendant was under a duty to disclose the fact to the plaintiff; (3) the defendant intentionally concealed or suppressed the fact with the intent to defraud the plaintiff; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if the plaintiff had known of the concealed or suppressed fact; and (5) as a result of the concealment or suppression of the fact, the plaintiff sustained damage. (*Burch v. CertainTeed Corp.* (2019) 34 Cal.App.5th 341, 348 (*Burch*), citing *Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 310-311 (*Bigler-Engler*).) With respect to concealment, there are four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts. The latter three circumstances presuppose the existence of some other relationship between the plaintiff and defendant in which a duty to disclose can arise. This relationship has been described as a transaction, such as that between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual arrangement. (*Id.* at pp. 349-350.)

GM argues the fifth cause of action fails to state sufficient facts for three reasons: a failure to plead fraud with particularity; a failure to plead that GM had a duty to disclose; and because the action is barred by the economic loss rule.

Regarding the economic loss rule, "the economic loss rule does not apply to limit recovery for intentional tort claims like fraud." (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 38.) More specifically, the economic loss rule does not apply to fraudulent inducement of a contract. (*Erlich v. Menezes* (1999) 21 Cal.4th 543, 552 (*Erlich*); *Robinson Helicopter Co. v. Dana Corp.* (2004) 34 Cal.4th 979, 989-990 (*Robinson*); *County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 328-329 ["The analysis [in *Robinson*] suggested that fraud *itself* is immune from application of the economic loss rule because fraud is particularly blameworthy and therefore unlike both contract causes of action and products liability causes of action."], internal citation omitted.)

Rattagan concerned fraud alleged to have occurred during a contractual relationship, not fraud in the inducement of a purchase. (*Rattagan, supra*, 17 Cal.5th at p. 41, fn. 12 ["*Rattagan's* tort claims are, of course, based on alleged conduct committed during the contractual relationship but purportedly outside the parties' chosen rights and obligations."].) The *Rattagan* court made clear it was not addressing fraudulent inducement of contract.

Where a fraudulent inducement of a contract is alleged, the fraud occurs prior to the formation of the contract and is separate from the contract.

Regarding particularity, each element in a fraud cause of action must generally be pleaded with specificity. (*Cadlo v. Owens-Illinois, Inc.* (2004) 125 Cal.App.4th 513, 519.) In the case of fraud by concealment or omission, however, courts require less particularity because “[h]ow does one show ‘how’ and ‘by what means’ something didn’t happen, or ‘when’ it never happened, or ‘where’ it never happened?” (*Alfaro v. Community Housing Improvement System & Planning Ass’n., Inc.* (2009) 171 Cal.App.4th 1356, 1384.) Less specificity is required when it appears from the nature of the allegations that the defendant necessarily possesses full information concerning the facts of the controversy. (See *Committee on Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 217, superseded by statute on other grounds as stated in *Californians for Disability Rights v. Mervyn’s, LLC* (2006) 39 Cal.4th 223, 227.)

The complaint alleges that GM manufactures, distributes, markets, and sells motor vehicles in Santa Clara County, California. (Complaint, ¶ 4.) It alleges that Ortiz entered into a contract with GM, the written warranty contract, in November 2019. (*Id.* at ¶ 6.) It also alleges that GM knew of the alleged transmission defect and did not disclose it to consumers such as Ortiz. (*Id.* at ¶¶ 51.) At least one appellate court has found similar allegations sufficient to support a cause of action for fraudulent concealment. (*Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 843-844.) Although the Supreme Court initially granted review in *Dhital*, it subsequently dismissed review, which means *Dhital* is precedential authority. (Cal Rules of Court, rule 8.1115(e)(2).) *Dhital* is persuasive. The complaint is pleaded with adequate specificity.

Regarding a duty to disclose, the complaint alleges a direct contractual relationship between Ortiz and GM via the warranty agreement. “[A]ny kind of contractual relationship” is sufficient to impose a duty to disclose. (*Burch*, supra, 34 Cal.App.5th at p. 350.) Even if the warranty contract was not enough to give rise to a duty to disclose, in California a “vendor has a duty to disclose material facts not only to immediate purchasers, but also to subsequent purchasers when the vendor has reason to expect that the item will be resold.” (*OCM Principal Opportunities Fund, L.P. v. CIBC World Markets Corp.* (2007) 157 Cal.App.4th 835, 859.) As a vehicle manufacturer and distributor, GM has reason to expect that its vehicles are likely to be sold by dealerships to consumers. The duty to disclose as a vendor is therefore triggered.

GM’s demurrer to the fifth cause of action on the ground that it fails to state sufficient facts is overruled.

LEGAL STANDARDS FOR MOTION TO STRIKE

Under Code of Civil Procedure section 436, a court may strike out any irrelevant, false, or improper matter inserted into any pleading, or strike out all or part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. Irrelevant matter includes (1) an allegation that is not essential to the statement of a claim or defense, (2) an allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense, and (3) a demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint. (Code Civ. Proc., § 431.10, subds. (b), (c).) At the same time, the California Court of Appeal has emphasized “[w]e have no intention of

creating a procedural ‘line item veto’ for the civil defendant.” (*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1683.) The grounds for a motion to strike must appear on the face of the challenged pleading or from matters of which the court may take judicial notice. (Code Civ. Proc., § 437, subd. (a); see also *City and County of San Francisco v. Strahlendorf* (1992) 7 Cal.App.4th 1911, 1913.) In ruling on a motion to strike, the court reads the complaint as a whole, all parts in their context, and assumes the truth of all well-pleaded allegations. (*Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63 (*Turman*).) As with a demurrer, extrinsic evidence cannot be considered.

California Rules of Court, rule 3.1322(a) requires that “[a] notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively.” (Cal. Rules of Court, rule 3.1322(a).)

DISCUSSION

GM moves to strike portions of the complaint’s first, second and third causes of action, as well as a portion of the prayer (specifically paragraphs 29-31, 36 and 39) for “improperly pleading a Request for Civil Penalties” in violation of Code of Civil Procedure section 871.24. (See GM’s notice of motion.)

The complaint alleges that Ortiz requested that GM buy back the vehicle on August 18, 2025, thereby also alleging that the vehicle was still in Ortiz’s possession at that time. (Complaint at ¶ 24.)

Assembly Bill No. 1755 added chapter 12 to title 10 of part 2 of the Code of Civil Procedure. The bill added sections 871.20 through 871.28, including 871.24. (Unspecified statutory references are to the Code of Civil Procedure.) The bill was signed by the Governor in September 2024 and became effective on January 1, 2025. (Stats. 2024, ch. 938.) It initially applied to all actions seeking restitution, vehicle replacement, or civil penalties under Civil Code sections 1793.2, 1793.22, and 1794, regardless of the vehicle manufacturer. (Former section 871.20, Stats. 2024, ch. 938, § 1.)

The Legislature amended chapter 12 with Senate Bill No. 26, urgency legislation which became effective upon the Governor’s signature on April 2, 2025. (Stats. 2025, ch. 1.) Senate Bill No. 26 amended sections 871.20 and 871.24. It also added sections 871.29 and 871.30. Senate Bill No. 26 amended chapter 12 in a fundamental way by making its provisions applicable only to vehicle manufacturers who opt in to its requirements. Section 871.20, subdivision (a), now provides that chapter 12 applies to actions “brought against a manufacturer who has elected under section 871.29 to proceed under this chapter.” Section 871.29, subdivision (a)(1) provides that a manufacturer may elect to be governed by chapter 12 by “providing written notice of that election to the Arbitration Certification Program within the Department of Consumer Affairs by October 31 of the preceding calendar year, except as provided in Section 871.30.” Section 871.29, subdivision (b) provides that “[u]nless a manufacturer has made the election described in subdivision (a) that covers a given year, Sections 871.20 to 871.28, inclusive, shall not apply to an action described in subdivision (a) of Section 871.20 with respect to all of the manufacturer’s motor vehicles sold during that year, except as provided in Section 871.30.” Section 871.29, subdivision (d) further provides that when a motor vehicle is sold new, “a manufacturer shall provide notice to a consumer

specifying which one of the following procedures governs the vehicle: (1) The procedures set forth in this chapter; (2) The procedures set forth in Article 3 (commencing with Section 1792) of Chapter 1 of Title 1.7 of Part 4 of Division 3 of the Civil Code.”

Section 871.30, subdivision (a), provides: “Within 30 days of the effective date of the act adding this section, a manufacturer may elect to be governed by this chapter for all actions described in subdivision (a) of Section 871.20 with respect to all of its motor vehicles sold in the year 2025 and in all prior years by providing written notice of that election to the Arbitration Certification Program within the Department of Consumer Affairs.” Subdivision (c) further provides: “Unless a manufacturer has made the election described in subdivision (a), Sections 871.20 to 871.28, inclusive, shall not apply to an action described in subdivision (a) of Section 871.20, including actions already filed between January 1, 2025 and the effective date of the act adding this section, with respect to all of its vehicles sold new in the year 2025 and in all prior years.”

GM has not shown that section 871.24 applies here, given that the statutory scheme did not come into effect until more than five years after Ortiz’s purchase of the subject vehicle. It is not apparent from the face of the pleading or from any material offered for judicial notice that GM has elected to participate in the procedures set forth in section 871.20 et seq. GM’s motion to strike is denied.

CONCLUSION

GM’s demurrer to the complaint’s fourth and fifth causes of action on the basis that they are barred by the statute of limitations is sustained with leave to amend.

GM’s demurrer to the complaint’s fifth cause of action on the basis that it fails to state sufficient facts is overruled.

GM’s motion to strike portions of the complaint is denied.

Any amended pleading must be filed and served no later than September 18, 2026.

The court will prepare the order.

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Calendar Line 8**Case Name:** EV Core Corp. dba Pilates Evergreen Valley v. JM Home Builders, Inc.**Case No.:** 26CV497313

Petitioner EV Core Corp.'s verified petition for release of property from mechanics lien. Notice is proper (Civ. Code, §§ 8108, subd. (c); 8486, subd. (b)), and the petition is unopposed.

A mechanics lien claimant must commence an action to enforce a mechanics lien within 90 days after the claim of lien is recorded. The claim of lien "expires and is unenforceable" if no action is commenced within that time. (Civ. Code, § 8460, subd. (a).) A property owner or other entity with interest in property subject to a claim of lien may petition the court for an order to release the property from the claim of lien if the claimant does not timely commence an action to enforce the lien. (Civ. Code, § 8480, subd. (a).) The petition must be verified and must allege "all of the following: (a) The date of recordation of the claim of lien. A certified copy of the claim of lien shall be attached to the petition.; (b) The county in which the claim of lien is recorded.; (c) The book and page or series number of the place in the official records where the claim of lien is recorded.; (d) The legal description of the property subject to the claim of lien.; (e) Whether an extension of credit has been granted under Section 8460, if so to what date, and that the time for commencement of an action to enforce the lien has expired.; (f) That the owner has given the claimant notice under Section 8482 demanding that the claimant execute and record a release of the lien and that the claimant is unable or unwilling to do so or cannot with reasonable diligence be found.; (g) Whether an action to enforce the lien is pending.; (h) Whether the owner of the property or interest in the property has filed for relief in bankruptcy or there is another restraint that prevents the claimant from commencing an action to enforce the lien." (Civ. Code, § 8484.) A prevailing party is entitled to reasonable attorney fees. (Civ. Code, § 8488, subd. (c).)

Petitioner's verified petition alleges respondent JM Home Builders, Inc., recorded a mechanics lien for \$250,000 on September 12, 2025, against property located at 4055 Evergreen Village, Suite 130, San Jose, CA, Santa Clara County (document No. 25869033). A certified copy of the lien is attached to the petition. The petition alleges no extension of credit has been granted under Civil Code section 8460. The petition alleges petitioner gave respondent notice under Civil Code section 8482, demanding that respondent record a release of lien. The petition alleges no action to enforce the lien is pending. And the petition alleges petitioner is not aware of any bankruptcy proceedings that would prevent the claimant from commencing an action to enforce the lien. The petition requests an order releasing the lien, and for \$4,900 in attorney fees (14 hours at \$350/hour).

On good cause shown, the petition is GRANTED. The mechanics lien with document number 25869033 has expired and is unenforceable. The property is released from that mechanics lien. Respondent JM Home Builders, Inc. must pay petitioner \$3,500 in attorney fees (10 hours at \$350/hour). Petitioner's counsel's declared the fee estimate included "several hours" counsel estimated would be devoted to reviewing any opposition and drafting a reply. No opposition was filed, meaning those attorney fees were not incurred. The court will prepare the order.

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